

be held. Settlement of the matter may also result in an award of attorneys' fees to one or more parties under *Smith v. Szezyller* (2019) 31 Cal.App.5th 450, 242. Interested persons or parties who do not have counsel may attend the mediation and participate.

Non-participating persons or parties who receive notice of the date, time and place of the mediation may be bound by the terms of any agreement reached at mediation without further action by the Court or further hearing. Rights of trust beneficiaries or prospective beneficiaries may be lost or forfeited by the failure to participate in mediation. Participation in mediation is a prerequisite to an evidentiary hearing. By failing to participate in mediation, a person or party will waive their right to an evidentiary hearing.

Petitioner Juan "Joanne" Wang and Guardian Ad Litem Mari Duncan shall meet and confer regarding selection of a mutually acceptable mediator. The Court continues this matter for review on the status of mediation to November 13, 2026, at 9:00 a.m., in Department 6, and continues to reserve jurisdiction over the pending motion. No later than two weeks prior to the continued hearing date, the parties shall submit a joint statement indicating the status regarding selection of a mediator.

Separately, the unopposed petition regarding disposition of real property is granted as prayed. A proposed order has been submitted.

19. PR0001064 In the Matter of Kent W. Fair

No appearances are required. The petition to determine existence of trust and confirm trust assets is granted as prayed. A proposed order has been submitted.